

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:

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KELVIN HERNANDEZ,

Index No.

Plaintiff,

SUMMONS

-against-

Plaintiff designates
Bronx County as the place
of trial.

THE CITY OF NEW YORK, COMMISSIONER
KEECHANT SEWELL AND EDWARD CABAN IN
THEIR OFFICIAL CAPACITY, ROBERT WOJINICKI,
Individually, and JOHN DOE(S) 1-10
POLICE OFFICERS in their individual capacity

The basis of the venue is
where the tort arose and
where Plaintiff resides.

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your Answer, or if the complaint is not served with the summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after service of this summons, exclusive of the day of service, (or within thirty (30) days after service is complete, if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer, judgment will be taken against you by default for the relief demanded hereto.

Dated: New York, New York
December 7, 2023

Yours,

/s/

Masood Syed
Law Firm of Masood Syed, P.C.
Attorney for Plaintiff
475 W. Merrick Road, Suite 105
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(516) 962-9574

/s/

John Scola
Law Office of John A. Scola, PLLC
Attorney for the Plaintiff
90 Broad Street, 10th Floor
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(917) 423-1445

DEFENDANTS ADDRESS:

Corporation Counsel of the City
Of New York
100 Church Street
New York, NY 10007

Police Commissioner Keechant Sewell
One Police Plaza
New York, NY 10038

Police Commissioner Edward Caban
One Police Plaza
New York, NY 10038

ROBERT WOJINICKI
3016 Webster Ave.
Bronx, NY, 10467

Police Officer Does (1-10)
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Date Filed:

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KELVIN HERNANDEZ,

Index No.

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, COMMISSIONER
KEECHANT SEWELL AND EDWARD CABAN IN
THEIR OFFICIAL CAPACITY, ROBERT WOJINICKI,
Individually, JOHN DOE(S) 1-10 POLICE OFFICERS
in their individual capacity

Defendants.

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Plaintiff, KELVIN HERNANDEZ, by his attorneys, SYED & SCOLA, ESQUIRES,
respectfully alleges upon information and belief as follows:

1. At all times mentioned, Plaintiff KELVIN HERNANDEZ, was a resident of Bronx County, City and State of New York.
2. At all times mentioned, the CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. Upon information and belief, at all times mentioned, Defendants POLICE COMMISSIONERS EDWARD CABAN AND KEECHANTANT SEWELL IN THEIR OFFICIAL CAPACITY, and ROBERT WOJINICKI were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

4. Further Plaintiff believes that the following officers were involved in the incident.

These officers include but are not limited to SERGEANT RUBEN SANTOS (TAX 949626), POLICE OFFICER DILEON, POLICE OFFICER YILDY MORALES (TAX 968069), POLICE OFFICER AMANDA SUEROMOJICA (TAX 97457), POLICE OFFICER WOJNICKI, POLICE OFFICER JESSICA SERBO (TAX 973042), POLICE OFFICER KEIRO YRRIZARRY (TAX 974667) POLICE OFFICER JOSHUA GARCIA (967518), POLICE OFFICER SHAWN ROMERO (TAX 962063), POLICE OFFICER GABRIEL COHEN (TAX 974354), POLICE OFFICER MICHAEL RODRIGUEZ (TAX 974483), POLICE OFFICER LIAM CONROY (970462), POLICE OFFICER ROBERT GLYNN (961791), POLICE OFFICER JAMES LINDQUIST (955068), POLICE OFFICER JEAN PATRICK 970619), POLICE OFFICER MATTHEW ULRICH (TAX 974611), POLICE OFFICER LUIS JIMINEZ-SANCHEZ (TAX 969352), POLICE OFFICER CARLOS POLANCO-DELACRUZ (968714), POLICE OFFICER TANIA MEJIA (TAX 968635), POLICE OFFICER JOSEPH MANNI (TAX 956876), POLICE OFFICER ELVIS HIDALGO-RODRIGUEZ (TAX 968491), POLICE OFFICER ULISES SANTANA (TAX 973761), POLICE OFFICER JESSICA ZERBO, POLICE OFFICER SHAWN ROMERO (TAX 962063), and POLICE OFFICER GABRIEL COHN (TAX 974354). These officers at all times described herein were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.

FACTUAL ALLEGATIONS

5. On or about April 21, 2023, Plaintiff, his girlfriend Alicia Bajraktarevic, and some other friends were sitting outside on the steps of Plaintiff's mother residence on Valentine Avenue in the confines of the 52 Precinct.
6. Ms. Bajraktarevic is a New York City Police Officer. She was off duty on this day.
7. Plaintiff and Ms. Bajraktarevic were involved in an intimate relationship and shared things that couples normally do, including one automobile, a black Chevrolet Equinox SUV (SUV).
8. While at his mother's residence, Plaintiff parked the SUV, on a public street and were not in violation of any parking regulations.
9. Approximately an hour or two after parking the SUV, Plaintiff noticed two police officers looking inside and around the SUV. The SUV was parked on a public street and was not in violation of any parking regulations
10. Plaintiff was concerned about the officers surrounding his girlfriend's vehicle and approached the officers from a distance.
11. Plaintiff questioned the officers as to their interest in the car and the officers responded by telling him, in sum and substance, "there is a police plaque in the car and it is none of your concern."
12. The Police Officers named in Paragraph 6 of this complaint are the officers who responded to the scene and initiated the encounter that led the events of this complaint
13. Plaintiff then retreated back to his mother's residence and joined Ms. Bajraktarevic and friends.

14. The officers continued to surround the car and were joined by several additional officers from the 48 or 52 Precinct.
15. One of the officers then signaled to Ms. Bajraktarevic to come to the car.
16. Ms. Bajraktarevic went to the car and informed the officers she was a police officer, was off-duty and on her scheduled vacation.
17. Ms. Bajraktarevic further stated that the car was legally parked on a public street.
18. Ms. Bajraktarevic returned to Plaintiff and was noticeably upset.
19. Noticing that Ms. Bajraktarevic was upset, Plaintiff went back across the street and asked the officers why they were harassing Ms. Bajraktarevic and why they were searching the vehicle without a warrant.
20. Plaintiff remained at a safe distance away from the police officers and continued to express his concern about the search of the SUV as he believed the officers were doing this intentionally to harass him.
21. Plaintiff recognized Police Officer Wojnicki from prior incident he had in March 13, 2023.
22. On March 13, 2023, Plaintiff was double parked near the 48 precinct when Police Officer Wojnicki approached Plaintiff and asked him to move his parked car.
23. Plaintiff explained to Police Officer Wojnicki that he was moving in one minute but the officer started to berate Plaintiff and did not give him any time to move.
24. Officer Wojnicki then called for backup and forcefully and physically removed Plaintiff from the vehicle and issued him a summons for disorderly conduct.
25. This summons was dismissed.

26. Returning to the incident at hand, Plaintiff, knowing Officer Wojnicki had a personal vendetta against him, began recording the incident on his cell phone.
27. At one point the Officer Wojnicki became argumentative with Plaintiff and began berating him. Officer Wojnicki continued this line of berating against Plaintiff and chose to escalate an otherwise calm situation.
28. Officer Wojnicki incited his fellow officers against Plaintiff even though Plaintiff was at a safe and far distance from all of the officers and maintained this distance throughout the entire duration of the interaction.
29. Within a few minutes of berating Plaintiff and inciting his fellow officers, Officer Wojnicki signaled to his supervisor, Sergeant Santos, who grabbed Plaintiff from behind and proceeded to take him down violently.
30. The officers did not have probable cause to restrain Plaintiff.
31. Numerous other officers then followed suit and began grabbing and striking Plaintiff.
32. Plaintiff had his cellphone in his hand while the officers were striking him.
33. Plaintiff continued to record until he was able to turn off, lock and secure his cellphone.
34. Plaintiff did this so the officers would not delete or destroy the video.
35. There were at least six or seven officers grabbing, twisting and striking Plaintiff's arms, hands, wrist and body.
36. The officer's struck Plaintiff's hands with their metal handcuff and then violently wrapped the hand cuffs around both of his wrists.

37. Plaintiff was fully cooperative and did not resist the unlawful assault on him by the officers.
38. When the officers violently wrapped the handcuffs on both of Plaintiff's wrist they caused serious nerve and muscle damage to both of Plaintiff's wrists.
39. After violently handcuffing Plaintiff, the officers removed him to the 48 Precinct. Plaintiff remained in handcuffs in the precinct holding cell for approximately another two hours.
40. Plaintiff's arrest processing did not begin until the next day when new officers began their day shift.
41. Plaintiff was in extreme pain from the nerve and muscle damage that was caused by the officers who unlawfully and maliciously placed him under arrest but he was not given any medical aide or treatment.
42. Plaintiff was subsequently arrested and charged with one count of Penal Law Section 205.30 "A" MISDEMEANOR Resisting Arrest and Penal Law Section 240.26 01 VIOLATION Harassment- 2nd Physical. Docket No. CR-008664-23BX; CJTN No. 70282799K; and NYSID No. 02466194N.
43. The Bronx County District Attorney's Office dismissed both of these charges on July 25, 2023 under CPL 170.30 (i) (e) and Sealed the records pursuant to CPL 160.50.
44. As a result of this assault by the officers, Plaintiff's has permanent nerve, muscle and ligament damage.
45. Plaintiff will never be able to fully recover from the unnecessary injuries he sustained at the hands of these officers.
46. Plaintiff required a surgery to repair both of his wrists.

47. The injuries to Plaintiffs wrists were caused solely by the unlawful actions of the Defendants.
48. The injuries to Plaintiffs wrists were caused solely by the police brutality the Defendants.
49. At no time herein did Plaintiff resist arrest in any way that would require physical restraint.
50. As a result of the unlawful actions of the Defendants, Plaintiff needed surgery on each of his wrists.
51. The first surgery, on his right wrist was on May 31, 2023.
52. The second surgery on his left wrist as on September 1, 2023.
53. Both of these injuries and subsequent surgeries were caused by the gang assault from the Defendants herein.
54. Plaintiff continues to undergo post-surgery care and physical therapy.
55. Plaintiff will never be able to use his hands and wrists in the same way again.

AS A FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
FALSE ARREST and FALSE IMPRISONEMENT UNDER 42 U.S.C. §1983/NEW
YORK STATE LAW

56. As and for a first cause of action: Plaintiff repeats and re-alleges all the allegations contained in paragraphs “1” through “54” with full force and effect as though set forth at length herein.
57. On or about April 21, at about late afternoon in the vicinity Valentine Avenue in the Bronx, the defendants, jointly and severally without any warrant, order or other legal process, and without any legal right, wrongfully and unlawfully arrested the

Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of the Bronx. The Plaintiff was thereafter held in custody for approximately 14 hours. The defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law, and at all times, the Plaintiff was conscious of his confinement.

58. The arrest, detention and imprisonment of plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
59. As a result of plaintiffs' false arrest and imprisonment, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
60. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.
61. The defendant officers were at all material within the scope of their employment, and defendant City is vicariously liable for officers acts as described above.
62. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

AS FOR A SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
Constitutional Violations

63. As and for a Second cause of action against the named police officers in their individual capacities. Plaintiff incorporates, repeats, and re-alleges all of the

- allegations contained in paragraphs “1” through “61” with full force and effect as though set forth at length herein.
64. Defendants Police Officers were at all times relevant, duly appointed and acting officers of the City of New York’s Police Department.
65. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies, customs and usage of the State of New York, and/or City of New York.
66. Plaintiff KELVIN HERNANDEZ is and was at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 U.S.C. Section 1983 and 42 USC Section 1988.
67. The defendant the CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
68. On or about April 21, 2023, the defendants, while effectuating the seizure of the Plaintiff KELVIN HERNANDEZ, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the defendants possessing probable cause to do so.
69. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution: a) freedom from assault to his person; b) freedom from battery to his person; c) freedom from illegal search

and seizure; d) freedom from false arrest; e) freedom from malicious prosecution; f) freedom from the use of excessive force during the arrest process; and g) freedom from unlawful imprisonment.

70. The defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments to the United States Constitution.
71. The direct and proximate result of the Defendant's acts are that the Plaintiff has suffered severe and permanent injuries of both of a physical and psychological nature, was forced to endure pain and suffering, all to his detriment.

AS A THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Excessive Use of Force in Violation of the 4th and 14th Amendments, brought

Pursuant to 42 U.S.C. Section 1983)

72. As and for a Third cause of action against the named police officers in their individual capacities. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in paragraphs "1" through "61" with full force and effect as though set forth at length herein.
73. The conduct of the Defendants herein and JOHN DOES (1-10) police officers, in grabbing Plaintiff, causing crushing injuries to his wrist, handcuffing him in a violent manner, hitting him, throwing him to the ground, and other physical brutality to Plaintiff was excessive an unreasonable, was done intentionally, willfully, maliciously, with deliberate indifference and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful

justification or reason, and was designed to and did cause specific and serious physical and emotional pain and suffering in violation of plaintiff's rights as guaranteed under 42 U.S.C. § 1983, and the fourth and fourteenth amendments to the United States Constitution, including the right to be free from the use of excessive, unreasonable and unjustified force.

74. As a direct and proximate result of the foregoing, plaintiff was subjected to great physical and emotional pain and humiliation, and was otherwise damaged.
75. Consequently, plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial.
76. 37. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant CITY OF NEW YORK, is vicariously liable for the defendant officers' actions described above.

AS A FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Monell Claim)

77. By this reference, plaintiffs incorporates each and every allegation and averment set forth in paragraphs 1 through 70 of this complaint as though fully set forth herein.
78. The defendant officers arrested and incarcerated the plaintiff in the absence of any wrongdoing, notwithstanding their evidence of criminal knowledge that said arrest and incarceration would jeopardize the plaintiff's liberty, well-being, safety and constitutional rights.
79. The acts complained of were carried out by the individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

80. The defendant officers acted under color of law, in their official capacity, and their acts were performed pursuant to the customs, policies, usages, practices, procedures and rules of the City of New York and its police department.
81. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and its police department include, but are not limited to the following unconstitutional practices:
- A. Wrongfully arresting individuals on the pretext that they are engaged in illegal or criminal conduct;
 - B. manufacturing evidence against individuals allegedly involved in illegal or criminal conduct;
 - C. unlawfully searching detainees and/or their property in the absence of any reasonable suspicion that said individuals were concealing weapons or contraband;
 - D. arresting innocent persons in order to "productivity" goals (i.e. arrest quotas); and
 - E. wrongfully and unreasonably brutalizing innocent members of the public, despite the lack of probable cause to do so.
82. The aforesaid event was not an isolated incident. The City and its police commissioner has been aware for some time, from lawsuits, notices of claim, complaints filed with the Civilian Complaint Review Board, and judicial rulings suppressing evidence and finding officers incredible as a matter of law, that a disturbing number of their police officers unlawfully search and seize citizens, bring charges against citizens with no legal basis, perjure themselves in charging instruments and testimony, and fail to intervene in and report the obviously illegal actions of their fellow officers. Nevertheless, the City and its police commissioner have allowed policies and practices that allow the aforementioned to persist.

83. For example, the well documented failures of the Civilian Complaint Review Board ("the CCRB"), a City agency, to substantiate obviously meritorious citizen complaints have gone uncorrected. The CCRB regularly finds complainants lack credibility based on the fact that such complainants have also brought lawsuits to remedy the wrongs they have experienced, a practice that often results in not substantiating the most serious charges brought to them. In addition, the CCRB virtually never initiates their own findings of false statements against officers who have made false statements to the CCRB in their own defense, nor do they initiate findings that officers have failed to report their fellow officers' misconduct; thus, officers have no real incentive to come forward, or to testify truthfully at the CCRB. The CCRB has no enforcement mechanisms once making a finding against an officer; it can only make recommendations to the NYPD, officer once finding misconduct by an
84. The NYPD, once receiving a substantiated complaint by the CCRB, fails to adequately discipline officers for misconduct. The NYPD Department Advocate, which is endowed with the responsibility of following up on substantiated CCRB charges, is understaffed and under-utilized. Furthermore, in the extraordinarily rare event, such as the matter at bar, that the CCRB substantiates a complaint and the Department Advocate proves the case in an internal trial against an officer, the police commissioner still maintains the power to reduce the discipline against such an officer, which has been done on many occasions.
85. Further, the City and its police commissioner have no procedure to notify individual officers or their supervisors of unfavorable judicial review of their

conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected.

86. Additionally, according to a report of the New York City Bar Association issued in 2000, the City has isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. Alan Hevesi, as New York City Comptroller, in 1999 reported that there was a "a total disconnect" between the settlements of even substantial civil claims and police department action against officers.
87. The existence of the aforesaid unconstitutional customs and policies may also be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on January 20, 2006, that commanders are permitted to set "productivity goals".
88. Furthermore, the existence of the aforesaid unconstitutional customs and policies may also be inferred from the ruling (Docket entry 32) of the Court (Eastern District of New York), in the case(s) of Jose Colon v. City of New York, et al (09-cv-8) and Maximo Colon v. City of New York, et al (09-cv-9), wherein the Court stated, inter alia, that "Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal evidence of and state courts, has repeated, widespread revealed anecdotal falsification by arresting officers of the New York City Police Department", and that "there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving the illegal conduct of the

kind now charged”. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York, constituted a deliberate indifference to the safety, well-being and constitutional rights of all defendants, including but not limited to the plaintiff; were the proximate cause of, and moving force behind, the constitutional violations suffered by the plaintiff as alleged herein, and deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States:

89. The right of the plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States.
90. The right of the plaintiff not to be deprived of life, liberty, or property without due process of law, and the right to the equal protection of the laws, secured to him by the Fifth and Fourteenth Amendments to the Constitution of the United States.
91. The right to be free from unreasonable detention and/or continued detention without probable cause in that the plaintiff was detained.
92. The right to be free from the use of excessive force.
93. As a result of the actions of the defendants, the plaintiff was deprived of his rights, privileges, and immunities secured by the United States Constitution, in particular, the Fourth, Fifth, and Fourteenth Amendments, in contravention of 42 USC §1983 and the laws of New York State, and New York City without just or legal cause when defendant City, by its employees and/or agents unlawfully arrested and imprisoned the plaintiff thereby depriving him of his liberty without due process of law.
94. This cause of action is brought pursuant to 42 U.S.C. § 1983 for violations of the Fourth and Fourteenth Amendments to the United States Constitution. It applies to the City of New York and police officers sued in their official capacity and should be characterized as a “Monell” claim).

95. Defendants CITY OF NEW YORK, COMMISSIONER ECHANT SEWELL AND EDWARD CABAN IN THEIR OFFICIAL CAPACITY and JOHN DOE(S) 1-10 POLICE OFFICERS in their individual capacity has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and/or search of individuals warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
96. The City of New York was negligent and/or deliberately indifferent by failing to implement a policy with its police department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
97. The City of New York is negligent or has acted with deliberate indifference due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking: Probable cause must be present before an individual such as the Plaintiff herein can be arrested; Excessive force cannot be used against an individual who does not physically resist arrest; an individual who

sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

98. The foregoing acts, omissions and systemic failures are customs and policies of the CITY OF NEW YORK which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff, commit an assault/battery to his person under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.
99. The direct and proximate result of the Defendant's acts are that the Plaintiff has suffered severe and permanent injuries of both of a physical and psychological nature, was forced to endure pain and suffering, all to his detriment.

WHEREFORE, Plaintiff, KELVIN HERNANDEZ demands judgment against the defendants, jointly and severally, in an amount of damages which exceeds the monetary jurisdictional limits of any and all lower courts which would otherwise have jurisdiction in the amount determined upon trial of this action.

Dated: New York, New York
December 7, 2023

_____/s/_____
Masood Syed
Law Firm of Masood Syed, P.C.
Attorney for Plaintiff
475 W. Merrick Road, Suite 105
Valley Stream, NY 11580
(516) 962-9574

_____/s/_____
John Scola
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Attorney for the Plaintiff
90 Broad Street, 10th Floor
New York, New York 10004
(917) 423-1445

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

We, the undersigned, an attorneys duly admitted to practice law in the State of New York, under penalties of perjury do affirm;

That we are the attorneys of record for the Plaintiff in the within matter and make this affirmation in accordance with CPLR 3020. We have read the within Summons and Verified Complaint and know the contents thereof to be true to your affirmants own knowledge, with the exception of those matters therein stated to be alleged upon information and belief. Your affirmants bases his belief regarding those matters upon the contents of the file and conversation with the Plaintiff.

This verification is made by your affirmants and not by the Plaintiff for the following reason; Plaintiff resides in a different County than where your affirmant maintains an office.

Dated: New York, New York
December 7, 2023

_____/s/_____
John Scola

_____/s/_____
Masood Syed